BOARD OF ETHICS
OF THE CITY OF PHILADELPHIA

J. Shane Creamer, Jr. **Executive Director** **Board of Ethics** **of the City of Philadelphia** 1515 Arch Street, 18th Floor Philadelphia, PA 19102	
	Matter No: 2510ET25
v.	
Ryan Boyer [redacted] Vine Street Philadelphia, PA [redacted] rboyer@ldcphilly.org	**Date of Issuance & Mailing:** September 10, 2026

FINAL DETERMINATION

On October 23, 2025, the Executive Director of the Board of Ethics initiated an administrative enforcement proceeding against Respondent Ryan Boyer alleging that Respondent did not timely file a Statement of Financial Interest in violation of Philadelphia Code Section 20-610 and Board Regulation No. 3. Respondent waived his right to a hearing. This Final Determination constitutes the Board's adjudication of the matter on the administrative record. As described in more detail herein, we find that Respondent committed a single violation of the financial disclosure filing requirement and impose a penalty of $1,000.

I. JURISDICTION

Philadelphia Home Rule Charter Section 4-1100 provides that the Board of Ethics "shall administer and enforce all provisions of this Charter and ordinances pertaining to ethical matters," including the City's Ethics Code, which is set forth at Philadelphia Code Chapter 20-600 and includes, at Section 20-610, the requirement to file an annual statement of financial interests.

II. ADMINISTRATIVE ADJUDICATION OF ETHICS VIOLATIONS

Home Rule Charter Section 4-1100 provides that the Board "shall conduct its enforcement activities either by bringing enforcement actions in the Court of Common Pleas or, if authorized by Council by ordinance, administratively adjudicating alleged violations and imposing civil penalties and other remedies for violations." Code Section 20-606(1)(h) authorizes the Board to administratively adjudicate alleged violations of the laws within its jurisdiction.

Pennsylvania's Local Agency Law, 2 Pa.C.S. § 105 et seq., sets forth the essential rules and procedures for adjudications conducted by a municipal administrative agency. Board Regulation No. 2 provides detailed procedures and requirements for such adjudications. Notably, in order to comply with the due process requirements articulated by the Pennsylvania Supreme Court in *Lyness v. Commonwealth*, 529 Pa. 535 (1992), Regulation No. 2 mandates that the Board "shall maintain a separation between the adjudicative functions and the investigatory or prosecutorial functions." As a result, the individual members of the Board, any Hearing Officer in a particular case, and the General Counsel and their staff are part of the adjudicative function, while the Executive Director and Enforcement Staff assisting them are part of the prosecutorial function. At all times, the Board, its Hearing Officer, and Board Staff take care not to commingle the adjudicatory and prosecutorial functions of the agency.

Paragraph 2.16 of Regulation No. 2 provides that the Board may "appoint a Hearing Officer to oversee pre-hearing disclosures, preside over a hearing, and prepare Findings of Fact and Conclusions of Law for the Board's consideration." The Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2 ("Supplemental Procedures") further outline the role of the Hearing Officer, including that "[t]he Hearing Officer or the

General Counsel (if a Hearing Officer has not been appointed), shall also have the discretion to schedule such pre-hearing conferences and issue amended or supplemental orders as are necessary for the fair and expeditious adjudication of the case."

On March 17, 2021, the Board appointed Louis S. Rulli, the Practice Professor of Law and Director of the Civil Practice Clinic and Legislative Clinic at the University of Pennsylvania School of Law, to serve as a Hearing Officer. Mr. Rulli presided over this case.

III. PROCEDURAL HISTORY

The Executive Director of the Board of Ethics initiated this administrative enforcement proceeding by serving a Notice of Administrative Enforcement Proceeding ("Notice") on Respondent on October 23, 2025.[1] (Docket No. ("Doc.") 1.) The Notice alleged that Respondent violated Philadelphia Code Section 20-610 (Statement of Financial Interests) as interpreted by Board Regulation No. 3. (Notice at ¶¶7-8.)

The Hearing Officer issued Procedural Instructions on November 12, 2025 (Doc. 3) explaining the process for administrative enforcement proceedings before the Board. The Procedural Instructions explicitly advised that if Respondent did not file a Response to the Enforcement Notice by November 25, 2025, he would waive his right to a hearing. Respondent did not file a Response or otherwise respond to the Notice. Thus, under Board Regulation No. 2, Paragraph 2.14(c), Respondent waived his opportunity for a hearing.

The Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2 ("Supplemental Procedures") allow the Executive Director to file a brief in support of the

[1] Initial service was made via email with delivery confirmation to the email address listed in the caption. Regulation No. 2, Paragraph 2.13(b) permits that the Notice be served by "any other method that provides delivery confirmation." Item 1 of the Supplemental Procedures further provides for service of filings via email. When Respondent did not participate by responding to the Notice, the Hearing Officer out of an abundance of caution served the Briefing Order and subsequent notifications on Respondent via both email and U.S. Mail to the address listed by Respondent on his 2024 Statement of Financial Interest. That street address is listed in the caption.

Enforcement Notice if a respondent does not request a hearing. Consistent with the Supplemental Procedures, the Hearing Officer issued a Briefing Order on December 4, 2025 (Doc. 5) requiring the Executive Director to file his brief no later than December 10, 2025. The Briefing Order explained that Respondent could file a response to the Executive Director's brief within fourteen days of service.

On December 5, 2025, the Executive Director filed a Brief in Support of the Enforcement Notice. (Doc. 6.) Respondent did not file a responsive brief or otherwise respond to the Executive Director's submission. The Hearing Officer issued a Supplemental Briefing Order to the parties on February 4, 2026 (Doc. 7), directing the Executive Director to provide additional information about communications with Respondent by February 18, 2026. The Supplemental Briefing Order again gave Respondent the opportunity to file a response to the Executive Director's briefing.

On February 18, 2026, the Executive Director filed a Supplemental Brief. (Doc. 8.) Respondent did not file a response. After the March 4, 2026, deadline for responding to the Supplemental Brief, the mailed copy of the Supplemental Briefing Order was returned to the Board's office by the United States Postal Service marked as "unclaimed."

Out of an abundance of caution, the Hearing Officer directed Board staff to arrange hand delivery of the Supplemental Briefing Order, the Executive Director's Supplemental Brief, and a cover letter. (Doc. 9.) A courier personally delivered these documents to Respondent at his place of business at the Laborer's District Council offices on April 13, 2026. (Doc. 9.) The accompanying letter clearly stated that this was the "last opportunity for [Respondent] to

participate in this enforcement action."[2] Even after this additional outreach, Respondent did not file a response to the Supplemental Brief.

On June 2, 2026, the Hearing Officer issued an Order to Close the Administrative Record (Doc. 10) explaining that after June 12, 2026, there would be no further opportunity to submit evidence or argument. The parties had until 5:00 p.m. on June 12, 2026, to object to the closure of the record. Neither party filed an objection.

IV. FACTUAL BACKGROUND

Respondent was at all relevant times a member of the Tax Review Board ("TRB"), including between January 1, 2025, and April 1, 2025. The TRB is responsible for reviewing taxpayer challenges to most City tax assessments or bills.

The Ethics Code requires certain individuals to file a Statement of Financial Interest ("SFI"). Philadelphia Code § 20-610(1). Members of listed City boards and commissions, including the Tax Review Board, are required to file an SFI by May 1 in any year in which they hold office and by May 1 of the year after they leave such office. Phila. Code § 20-610(1); Bd. Reg. 3, ¶ 3.5(y). Covered officials who take office after April 1 must file within 30 days of taking office. Phila. Code § 20-610(1), Bd. Reg. 3, ¶ 3.7(b). Accordingly, any member of the TRB who served between January 1, 2025, and April 1, 2025, was required to file a Statement of Financial Interest for 2024 by May 1, 2025. *Id.*

Respondent did not file an SFI by May 1, 2025. (*See* Respondent's SFI, E.D.'s Br. at Ex. A.) Board staff sent emails to Respondent at rboyer332@yahoo.com, with a copy to rboyer@ldcphilly.org, on July 2 and July 29, 2025, notifying him that his 2024 SFI was overdue. These emails are described in detail in the Hearing Officer's recommendation and are part of the

[2] The letter further warned that all further correspondence would be by regular U.S. Mail and email and noted that Respondent was obligated to provide accurate contact information.

record submitted with the Executive Director's Supplemental Brief. (Decl. of Alexander Kramer, Executive Director's Supplemental Brief ("ED's Supp. Br.") at Ex. A.) The July 29, 2025, email explicitly warned that after August 2, 2025, the matter could only be resolved through the Board's Enforcement Division and could result in a civil monetary penalty. *Id.* at ¶14. Respondent did not reply to either of these messages. *Id*. at ¶19.

On August 8, 2025, Respondent filed a Statement of Financial Interest for calendar year 2024. (Enforcement Notice at ¶6.)

V. RELEVANT LAW

a. Standards for Administrative Adjudication

In its adjudicative role, the Board must "determine, by a preponderance of the evidence, whether a violation of applicable law has occurred." Reg. 2, ¶ 2.20. The Executive Director bears the burden of proof and must establish each element of each alleged violation. *See Hui v. City of Philadelphia Parking Auth.*, 913 A.2d 994, 1000-01 (Pa. Commw. Ct. 2006). The Board's findings of fact must be supported by substantial evidence. *Monaghan v. Bd. of Sch. Dir.*, 618 A.2d 1239, 1243-44 (Pa. Commw. Ct. 1992). Substantial evidence is such relevant evidence that a reasonable mind might accept as adequate to support a conclusion. *Mrs. Smith's Frozen Foods Co. v. Workmen's Comp. Appeal Bd. (Clouser)*, 539 A.2d 11, 14 (Pa. Commw. Ct. 1988); *see also Bonatesta v. N. Cambria Sch. Dist.*, 48 A.3d 552, 558 (Pa. Commw. Ct. 2012).

A respondent who does not respond in writing to a Notice of Administrative Enforcement Proceeding waives their right to a hearing. Bd. Reg. 2, ¶ 2.14(c). Where a respondent does not request a hearing, the Board may make its final determination based on the undisputed allegations in the Notice and any evidence submitted by the Executive Director in support of the Notice. *Id.* at ¶ 2.20(b).

b. Requirement to File a Statement of Financial Interests

Section 20-610 of the Philadelphia Code provides that certain City officers and employees must "file a statement of financial interests for the preceding calendar year with the Board of Ethics no later than the first day of May of each year that the individual holds office and of the year after the individual leaves such office." Code §20-610(1). This requirement applies to, among others, "[m]embers … of boards and commissions that exercise significant powers of government, as determined by the Board of Ethics by regulation." *Id.* at §20-610(1)(e). Section 20-601(4) defines "board or commission member" as "[a] member of any City of Philadelphia board or commission established by The Philadelphia Home Rule Charter, The Philadelphia Code, or an Executive Order."

Regulation No. 3 (Statements of Financial Interests) interprets the SFI filing requirements. Subpart B of Board Regulation No. 3 lists who must file an SFI, including members of certain City boards and commissions. Specifically, Paragraph 3.5(y) of Regulation No. 3 requires filing by members of the Tax Review Board. Paragraph 3.7 of Regulation No. 3 provides further instruction as to when filers must submit an SFI:

> a. An individual who is required to file a Statement of Financial Interests must do so by the first day of May in any year in which they hold office and by the first day of May of the year after they leave such office.
> b. An individual who takes office after the first day of April shall file within 30 days of taking office.

c. Civil monetary penalties

Code Section 20-612 provides that penalties for violations of the Ethics code "shall be as set forth in Chapter 20-1300." Section 20-1302 provides for a base penalty of $1,000 that may be increased by aggravating factors or decreased by mitigating factors. Section 20-1302(2) requires the Board to make specific factual findings regarding the presence or absence of mitigating and

aggravating factors. *See Bullock*, 2510ET21 at 13. Where it finds a violation, the Board must impose a minimum penalty of $250. *Id*.

VI. ANALYSIS

a. Violation of Section 20-610 and Regulation No. 3

The Notice has one count for a single violation of Section 20-610 and Regulation No. 3 based on Respondent's failure to file an SFI disclosing financial interests for 2024 by May 1, 2025. (Enforcement Notice at ¶¶7-8.) The elements of a *prima facie* case for failure to file an SFI are straightforward. The Executive Director must show by a preponderance of the evidence that Respondent:

- held a City position listed in Philadelphia Code Section 20-610(1) or Subpart B of Board Regulation No. 3;
- served in that position in 2024; and
- did not file an SFI disclosing financial interests for 2024 by May 1, 2025.

The Executive Director set forth factual allegations in the Notice that he supplemented with evidence submitted through his Brief in Support. Respondent did not participate in this proceeding even after being handed copies of an Order issued by the Hearing Officer. Thus, Respondent has not denied or otherwise contested any of the facts asserted by the Executive Director.

Paragraph 2.20 of Regulation No. 2 provides that our final determination may be based on the uncontested facts in the Notice and any evidence submitted by the Executive Director in support of the Notice. *See* Bd. Reg. No. 2, ¶2.20(b); *see also Procedures for Admin. Enf. Proceedings that Supplement Bd. Reg. 2* at Item 5 (providing for briefing where a hearing is waived). Between the Notice and his Brief in Support, the Executive Director has sufficiently

alleged facts or presented evidence to support each element of a violation of the SFI filing requirement.

It is undisputed that Respondent served on the TRB between January 1 and April 1, 2025. Regulation No. 3 requires that all members of the TRB must file an SFI. Reg. 3, ¶3.5(y). It is further uncontested that Respondent did not file his 2024 SFI until August 8, 2025. (Notice at ¶6.) Accordingly, we find that the Executive Director has established a *prima facie* showing that Respondent failed to timely file his 2024 SFI in violation of Section 20-610 and Regulation No. 3.

VII. PENALTY

The Code provides for a base penalty of $1,000 that may be increased by aggravating factors to a maximum of $2,000 or decreased by mitigating factors to a minimum of $250. *Bullock*, 2510ET21 at 13 (applying Section 20-1302(2)(b)). The Executive Director proposed a penalty of $1,000. (*See* Enforcement Notice at 4.) Neither party argued for either enhancement or reduction of the penalty. We must nonetheless examine whether the evidence supports any mitigating or aggravating factors. *See Bullock*, 2510ET21 at 13 (citing Code § 20-1302(2)).

a. Aggravating factors

Aggravating factors are intent, repeat violation, and obstruction of investigation. Phila. Code. § 20-1302(1)(b); Bd. Reg. 3, ¶ 3.19. Neither party has alleged or presented any evidence of aggravating factors in this case. Accordingly, we find no aggravating factors.

b. Mitigating factors

Mitigating factors include good faith effort to comply, prompt corrective action, and prompt self-reporting. Phila. Code. § 20-1302(1)(a); Bd. Reg. 3, Para. 3.19; *see also Bullock*, at

14-15. The Board may consider additional mitigating factors to promote justice, consistent with the overall objectives of the Board. *Dukes* at 20.[3]

1. Good faith effort to comply

Where the law requires filing by a date certain, a good faith effort to comply necessarily requires some attempt to timely fulfill the disclosure obligation. *Bullock* at 15. Thus, an untimely disclosure – particularly one made weeks or months after the deadline – without any proffered justification for delay is not a good faith effort to comply. *Id.*

There is no evidence before us that Respondent attempted to file by the deadline of May 1, 2025. Accordingly, we find that Respondent did not make a good faith effort to comply. This finding does not imply that Respondent acted in *bad* faith. Rather, the result is dictated by the absence of any facts showing that Respondent tried to file on or before the May 1 deadline.

2. Prompt corrective action

The timeframe for corrective action for a filing is necessarily distinct from the initial filing deadline. *Bullock* at 15. It has further held that whether a respondent acted "promptly" is measured from the point at which they knew of the violation or defect and understood how to correct it. *Id.* at 15-16.

Board staff sent email notifications to Respondent on July 2 and July 29, 2025. (Supp. Br. at Ex. A.) The July 29, 2025, email warned Respondent that if he did not file by August 2, 2025, the matter would be turned over to Enforcement. Respondent did not respond to these communications and did not file his 2024 SFI until August 8, 2025.

The limited evidence before us supports that Respondent received these emails. The Hearing Officer's letter, which was hand-delivered to Respondent on April 13, 2026, explicitly

[3] While we may consider additional mitigating factors, we need not reach that question here because – as the Hearing Officer points out – "Respondent has not presented any evidence or offered any arguments that would support an additional basis for mitigation of the monetary penalty." *Report & Recommendation* at 11.

instructed Respondent to provide updated contact information. Even after this admonition, Respondent has not asserted that the Board used an incorrect email address or presented any other evidence to suggest that he lacked sufficient information to take prompt corrective action.

Board staff notified Respondent not only of his failure to file, but also of the date (August 2, 2025) after which the matter would be turned over to Enforcement. While not required to do so, Board staff gave Respondent a grace period with a date certain by which he could take corrective action and avoid a monetary penalty. Despite multiple notices of that date, Respondent failed to file in the extra time provided. Accordingly, while Respondent's filing of his 2024 SFI on August 8, 2025, was corrective, we find that it was not sufficiently prompt to warrant mitigation of the monetary penalty.

3. Prompt self-reporting

Section 20-1302(1)(a)(.3) describes self-reporting as reporting of a violation to the Board of Ethics. There is no evidence in the record that Respondent at any time contacted Board staff to self-report. We cannot, therefore, mitigate the penalty on the basis of self-reporting.

VIII. CONCLUSION

For the reasons stated above, we find that the undisputed evidence shows that Respondent was required to file an SFI for 2024 because he served on the TRB during the relevant period, but failed to file by May 1, 2025, in violation of Code Section 20-610 and Regulation No. 3. Additionally, we find that the evidence does not support the application of any mitigating factors that would warrant reduction of the civil monetary penalty.

Accordingly, the Board imposes a civil monetary penalty of $1,000 to be paid within thirty-five (35) days of the issuance and mailing of this Final Determination and the accompanying Order.

BY THE PHILADELPHIA BOARD OF ETHICS

/s/ Ellen Mattleman Kaplan

Ellen Mattleman Kaplan, Esq., Chair
Wesley R. Payne, IV, Esq., Vice Chair
Hon. Nelson A. Diaz (Ret.), Member
James R. Engler, Esq., Member
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